



कर्मचारी भविष्य निधि संगठन

(श्रम एवं रोजगार मंत्रालय, भारत सरकार)

EMPLOYEES' PROVIDENT FUND ORGANISATION

(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office

भविष्य निधि भवन, 14-भीकाजी कामा प्लेस, नई दिल्ली-110 066.

Bhavishya Nidhi Bhawan, 14, Bhikaji Cama Place, New Delhi - 110 066.

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Dated:15.02.2013

To

All Addl. Central P.F. Commissioners (Zones)

All Regional P.F Commissioners (Regional/Sub Regional Offices)

Subject:- Submission of details of cases where EPFAT has reduced the quantum of dues clubbing 14B and 7Q amounts-reg.

Sir,

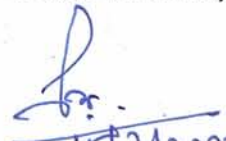
A number of proposals are received from field offices for filing SLP against the orders passed by EPFAT where the quantum of interest under section 7Q and damages under section 14B are clubbed together and reduced. The field offices fail to defend the matter properly before the Hon'ble High Courts thus leading to adverse orders in LPAs also.

2. As per the provision contained under section 7I of the EPF & MP Act 1952, EPFAT has no jurisdiction in so far as interest leviable under section 7Q of the Act is concerned. But it appears that the field offices do not bring this fact to the notice of either EPFAT or Hon'ble High Courts and therefore are losing the cases.

3. Keeping in view the magnitude of the cases received at Head Office, it has been decided to make a thorough legal scrutiny of these cases and to devise the recourse thereof.

4. It is, therefore, requested that the details of all such cases with briefs and copies of orders passed by EPFAT and High Courts may be forwarded to Head Office at the earliest preferably before 25th February, 2013.

Yours faithfully


(P.K. Udgate)

Additional Central P.F. Commissioner (Compliance)